Case File No. _____

STATE OF MINNESOTA
IN SUPREME COURT

Tyler Kistner, Gene Rechtzigel, Rich Draheim, Steve Drazkowski, Jeremy Munson, Tim Miller, Calvin Bahr, Erik Mortensen, Dan Hall, Jose W. Jimenez, Sandra A. Jimenez, Tomas Settell, Megan Olson, Leilani Holmstadt, Pam Myhra, Roz Peterson, Lucia Vogel, Jennifer Zielinski, Diane Napper, Alexander Deputie, Charlotte Smith, Fern Smith, Mariah Delapaz, Cynthia Londquist, Lisa Pohlman, Nora L. Felton, Deborah Coxe, Jane L. Volz, Paul Staut, Kathleen Hagen, Janine Kusnierek, Greg Buck, Don Bumgarner, Amy Bruno, and Kathleen Nydegger,

Petitioners,

vs.

Steve Simon, only in his official capacity as the Minnesota Secretary of State and member of the State Canvassing Board, Margaret H. Chutich, only in her official capacity as a member of the State Canvasing Board, Gordon L. Moore, III, only in his official capacity as a member of the State Canvasing Board, Regina Chu, only in her official capacity as a member of the State Canvasing Board, and Christian Sande, only in his official capacity of a member of the State Canvasing Board,

Respondents.

PETITION TO CORRECT ERRORS AND OMISSIONS

Under Minnesota Statute § 204B.44

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INTRODUCTION

The American people have become increasingly polarized along political lines and are now are more visibly and vocally divided than has been apparent in generations. The vitriol and distrust between the people and elected officials of opposing parties has continued to grow for many reasons, which in isolation may not be relevant, but taken in totality create a singular truth: The importance of election integrity and security has never been more important to the stability of our Republic than it is in this moment.

The 2020 elections needed to be above reproach. Funds were provided by the federal government under the CARES Act to support the state's efforts to enhance security. The Secretary of State's duty to prepare the county, city and local officials to fulfill their responsibilities to administer the election is clear. There should never be excuses made for inconsistent, non-secure, and sloppy administration of elections. This year, with such clear stakes, the consequences for mismanagement must be dire.

In addition to the growing political discord, the federal, state and local governments and American citizens have faced unprecedented challenges in 2020 as a result of COVID-19. Sadly, this virus has been used as a wedge to increase the partisan divide. More damaging, Minnesota Democrats have used COVID-19 as a tool to alter long-standing election law and procedure, after the Republican controlled Senate refused to consent to the changes.

Because the Democrats were unable to secure the elimination of election laws that created barriers to fraudulent voting, Democrat advocacy groups filed multiple lawsuits against Democrat Minnesota Secretary of State Steve Simon. Several of these lawsuits

were randomly assigned to a Ramsey County judge who happened to have been the state political director for Democrat Senator Amy Klobuchar. The most consequential of these suits sought to remove the witness requirement for ALL voters because a small number of voters feared having physical contact with a person to witness the ballot. Consequently, the Democrats entered into an overly broad stipulated settlement agreement limited to the August 11 primary election, approved by the assigned judge, on June 17, 2020, to waive the witness requirement on all absentee ballots, thus allowing anyone who intercepted an absentee ballot to return it without fear of rejection. On August 3, a second agreement was entered into and approved without legislative oversight or consideration: The agreement was extended to include the general election on November 3, 2020.

In 2016, there were 674,566 accepted Absentee & Mail-in ballots. Each of these were properly witnessed. In 2020, there were 1,909, 277 accepted Absentee & Mail Ballots, none requiring a witness. This sudden, massive increase in Absentee and Mail ballots altered the election process and adversely impacted the ability of the canvassing boards and Secretary of State to complete their duties in a manner that maintained voter trust and election integrity.

While Minnesotans watched people riot and protest without consequence, they were warned voting in person would be dangerous. They were told they could go to restaurants and bars but they should mail in their vote to avoid getting sick. People were told they could wear masks and socially distance and safely go to grocery and retail stores but voting in person was dangerous.

Minnesota state officials intentionally created a campaign to increase early voting. These same officials had a responsibility to ensure the safeguards that existed at the polling places would be present at the ballot boards. These officials had an obligation to ensure the county ballot boards were aware of and followed Minnesota election laws and rules. These officials were responsible to ensure that the PER completed by each county follow uniform procedures.

State officials failed Minnesota voters.

In the past two weeks, the entire world has been following the news about the alleged tampering with Dominion voting machines. Minnesota has many areas that use these machines. There are many examples of similar vote count anomalies in Minnesota as well as issues with systems being down or experiencing unexplained “glitches” during the night allowing for the alteration of vote counts.

Minnesota candidates for office and voters have come forward with affidavits detailing concerns and observations about the ignored and failed election processes in counties across the state. There are issues related to procedure, observer and election judge access, voter intimidation, lost ballots, lost Absentee envelopes, missing election materials and questionable ballots. There are concerns about voting equipment transmitting results during the early counting period and on election day.

Minnesota voters, regardless of party affiliation, have the right to know election results are accurate. Minnesota citizens attempted to participate in the PER, hoping to learn our voting system was secure. They saw the opposite- our voting system has crashed in many areas of the state.

If this Court does not take action to prevent the certification of the Minnesota election until a complete, bi-partisan statewide audit of the election occurs, including election materials, occurs, our election system, and the trust of the voters, will be irreparably harmed.

ISSUES PRESENTED

I

The PER is performed in public to allow the county auditor, in view of the public, to confirm the election conformed to the state's election laws and rules and that the results recorded are valid. Following the PER, the county auditor reports the results to the county canvassing board for certification if there are no fatal findings.

Whether the county auditor and county canvassing boards have the absolute discretion to ignore state law and rules during the election process and when completing the PER. Whether the PER is merely a rubberstamp process with only one outcome possible or a legitimate inquiry into the validity of the elections held across a county. Whether the county canvassing board engages in any oversight of the county auditor prior to certifying the election results. Whether canvassing boards have a statutory duty to ensure the laws were followed and the elections results presented are valid before being certified.

II

The Minnesota Secretary of State has a statutory duty to ensure election laws are implemented and enforced in a uniform manner across the state to ensure voters are treated equally under the law.

Whether the Secretary of State can engage in broad rewriting of election law through partisan litigation after the legislature has declined to act on his recommendations. Whether the Secretary of State has a duty to update regulations and election information, including technology used throughout the state. Whether the Secretary of State must provide clear guidance about the processes that must be followed by the county canvassing boards, including those related to the PER, across the state to ensure that each county completes the PER using uniform standards. Whether the Secretary of State has a duty to intervene when a county is failing to comply with election law. Whether election results that cannot be publicly verified because of systemic, disparate treatment of voters across the state must not be certified until a full audit, in compliance with Minnesota election law, has been completed.

RELIEF REQUESTED

Petitioners seek an immediate temporary restraining order (TRO) enjoining the 2020 State Canvassing Board from certifying the November 3, 2020 election.

This petition seeks relief under Minnesota Statute § 204.B.44, subd. (a)(4) against the Secretary of State and the Minnesota State Canvassing Board, who are charged with canvassing and certifying the results of all statewide elections, including state and federal offices, state constitutional amendment ballot questions, and state legislative and judicial offices that overlap more than one county, and who will likely certify county canvassing reports that certified election results that have not yet been subject to a Postelection Review that fully complies with Minnesota Election law, are fraudulent and include ballots that cannot be verified.

Petitioners seek an injunction against the Secretary of State and the Minnesota State Canvassing Board requiring them to:

- Ensure every county has completed a PER in full compliance with MN Stat. §206.89;
- Ensure every county complied with MN Stat. 13D.01 so the public has full access to the PER process;
  - The public and monitors designated by the Republican Party and other major parties have the right to be present to meaningfully observe all aspects of the PER, including but not limited to, the transfer and receipt of the ballots, the tapes from the voting machines, the entry of tabulation of the resulting vote counts, the absentee envelopes and absentee certifications; the information gathered by the ballot boards during the 45 days leading up to November 3, 2020;
  - The Petitioners, the Republican Party and the other major parties receive at least 24 hours notice prior to any election activity;
- Ensure every county has retained possession of ALL required election materials, including the outer envelopes, as required under Minnesota election law;

And Order

- The 87 County Canvassing Boards to complete a full canvass of all of the elections, including the down ballot races for state candidates, in their jurisdiction
- The PER to include all election materials in the canvass, including data from all machines used to count ballots
- The review of all ballots cast in Minnesota be read by two persons agreed to by Petitioners, or an identified proxy, and the other major parties, with said readings being overseen by Republican Party-designated monitors any others so designated by the Court; and
- Every table used for PER be video-streamed with audio or be available for viewing online; and
- The Plaintiffs and the Republican Party be provided with the opportunity to confirm, in person, the existence of all ballot envelopes; to observe a complete count of the outer envelopes and to verify postmarks on those envelopes; to compare voter signatures on outer envelopes, voter registration documents, and requests for absentee ballots or other voting records as necessary; to observe all items mentioned previously and any other election materials in the possession of the Secretary of State and/or any Minnesota County, City, Township or their agents.

PARTIES

PETITIONERS

1. Tyler Kistner ran for office for the U.S. Representative seat in Minnesota Congressional District 2 in the November 3, 2020 election.

2. Gene Rechtzigel ran for office for the U.S. Representative seat in Minnesota Congressional District 4 in the November 3, 2020 election.

3. Senator Rich Draheim ran for reelection for the State Senate seat in District 20 in the November 3, 2020 election and resumes office on January 5, 2021. He has served in this capacity since 2017.

4. Representative Steve Drazkowski ran for reelection in for the State House seat in District 21B in the November 3, 2020 election and resumes office on January 5, 2021. He has served in this capacity since 2007.

5. Representative Jeremy Munson ran for reelection for the State House seat in District 23B in the November 3, 2020 election and resumes office on January 5, 2021. He has served in this capacity since 2018.

6. Representative Tim Miller ran for reelection for the State House seat in District 17A in the November 3, 2020 election and resumes office on January 5, 2021. He has served in this capacity since 2015.

7. Representative Calvin Bahr ran for reelection for the State House seat in District 31B and resumes office on January 5, 2021. He has served in this capacity since 2017.

8. Representative Erik Mortensen ran for the State House seat in District 23B in the November 3, 2020 election and assumes office on January 5, 2021.

9. Senator Dan Hall ran for reelection for the State Senate seat in District 56 in the November 3, 2020 election. He has served in this capacity since 2011 and his term ends on January 4, 2021.

10. Jose W. Jimenez ran for office for the State Senate seat in District 57 in the November 3, 2020 election.

11. Sandra A. Jimenez ran for office or the State House seat in District 57B in the November 3, 2020 election.

12. Tomas Settell ran for office for the State Senate seat in District 52 in the November 3, 2020 election.

13. Megan Olson ran for office for the State House seat in District 57A in the November 3, 2020 election.

14. Leilani Holmstadt ran for office for the State Senate seat in District 54 in the November 3, 2020 election.

15. Pam Myhra ran for office for the State House seat in District 56A in the November 3, 2020 election.

16. Roz Peterson ran for office for the State House seat in District 56B in the November 3, 2020 election.

17. Lucia Vogel ran for office for the State Senate seat in District 41 in the November 3, 2020 election.

18. Jennifer Zielinski ran for office for the State Senate seat in District 61 in the November 3, 2020 election.

19. Diane Napper ran for office for the State Senate seat in District 63 in the November 3, 2020 election.

20. Alexander Deputie ran for office for the State Senate seat in District 67 in the November 3, 2020 election.

21. Charlotte Smith ran for office for the State House seat in District 40B in the November 3, 2020 election.

22. Fern Smith ran for office for the State House seat in District 51B in the November 3, 2020 election.

23. Mariah Delapaz ran for office for the State House seat in District 52A in the November 3, 2020 election.

24. Cynthia Londquist ran for office for the State House seat in District 52B in the November 3, 2020 election.

25. Lisa Pohlman ran for the State House seat in District 61B in the November 3, 2020 election.

26. Nora L. Felton, Deborah Coxe, Jane L. Volz, Paul Staut, Kathleen Hagen, Janine Kusnierek, Greg Buck, Don Bumgarner, Amy Bruno, and Kathleen Nydegger, are private adult citizens who are registered to vote in Minnesota and participated in the voting process in the November 3, 2020 election. As registered voters and residents of the State of Minnesota, these Petitioners have standing to bring this action.

RESPONDENTS

27. Minnesota Secretary of State Steve Simon is a constitutional executive officer sued only in his official capacity. As the chief elections official in Minnesota, the

Secretary of State partners up with local election professionals to administer elections and adopt rules to administer elections. The Secretary acts on behalf of the State of Minnesota in exercising his duties regarding federal, state, county, and local elections, promulgating and exercising and executing elections laws within the State. The election process includes the registration process for persons seeking to vote in any election within the State. The Secretary is the statewide election officer responsible for the policies relating to the conduct of elections within the State. Duties of the office also include that "the Secretary of State shall prepare and publish a volume containing all state general laws relating to elections. The attorney general shall provide annotations to the Secretary of State for this volume. The Secretary of State may prepare and transmit to the county auditors and municipal clerks detailed written instructions for complying with election laws relating to the conduct of elections, conduct of voter registration and voting procedures."[1]

The Secretary of State is responsible for defining, maintaining, and administering the permanent, centralized, interactive, computerized statewide voter registration list of every legally registered voter in the state and is charged with assigning a unique identifier to each legally registered voter in the state.[2] The Secretary of State makes permanent rules necessary to administer the voter registration system.[3]

The Secretary is the statewide election officer responsible for the policies relating to the conduct of elections within the State. The Secretary's office continually receives

[1]Minn. Stat. § 204B.27
[2]Minn. Stat. § 201.021.
[3]Minn. Stat. § 201.022, subd. 2.

information from other governmental entities or agencies, departments, and the judiciary regarding a person's citizenship status, whether a felon or if the felon has had his or her civil rights restored, of if a person has otherwise lost their right to vote by court order. Likewise, the Secretary of State provides the defendant counties with information regarding the eligibility of persons to vote.[4]

The Secretary is also a member of the 2020 State Canvassing Board.

28. Margaret H. Chutich is an Associate Justice of the Minnesota Supreme Court and a member of the 2020 State Canvasing Board. She is sued only in her official capacity as a member of the State Canvassing Board.

29. Gordon L. Moore, III, is an Associate Justice of the Minnesota Supreme Court and a member of the 2020 State Canvasing Board. He is sued only in his official capacity as a member of the State Canvassing Board.

30. Regina Chu is a Judge in the Fourth Judicial District Court and a member of the 2020 State Canvassing Board. She is sued only in her official capacity as a member of the State Canvassing Board.

31. Christian Sande is a Judge in the Fourth Judicial District and a member of the 2020 Canvassing Board. He is sued only in his official capacity as a member of the State Canvasing Board.

[4]See Minn. Stat.§§ 201.13, 201.15, 201.155, 201.157, and 201.158.

JURISDICTION

I. The Supreme Court has proper jurisdiction to issue injunctive relief under Minnesota Statute § 204B.44.

1. The court's jurisdiction is proper under Minnesota Statute § 204B.44, governing election errors and omissions.

2. Minnesota Statute § 204B.44 (a)(4) governing errors and omissions states that any individual may file a petition in the manner provided in this section for the correction of any wrongful act, omission, or error of any election judge, municipal clerk, county auditor, canvassing board or any of its members, the Secretary of State, or any other individual charged with any duty concerning an election. The Court has subject matter jurisdiction because of the power of the Court to "hear and determine cases that are presented to the court."[5] The court's authority to hear and determine a case depends upon the claims made.[6]

3. The Petitioners argue the wrongful acts of state and county election officials and election judges, who are charged with the responsibility to safeguard our entire election process, undermined those processes and engaged in conduct before the elections, throughout the election period and during the postelection review which, at a minimum, calls into question the accuracy of the results and more likely alters the results of races across the state. The egregious conduct of the state officials and county canvassers

[5]State v. Losh, 755 N.W.2d 736, 739 (Minn. 2008).

[6]See Robinette v. Price, 214 Minn. 521, 526, 8 N.W.2d 800, 804 (1943) (describing our jurisdiction as the authority to "hear and determine a particular class of actions" (emphasis added)). League of Women Voters Minnesota v. Ritchie, 819 N.W.2d 636,643 (Minn. 2012).

requires the Court to intercede. The circumstances of the 2020 general election require the entire statewide election to be reviewed in a bi-partisan manner.

4. Original jurisdiction exists because this petition relates to a duty breached by state and county officials in relation to a specific election.[7]

5. This petition does not challenge an election law properly passed by the legislature, but rather the failures of state and county officials to enforce the law in this specific election and a stipulated settlement agreement made between Democrat activists, the Democrat Secretary of State and a well-connected political staffer who became a district court judge to alter the law for the 2020 general election.[8]

6. Because of the extreme political division in the state, the public interest in ensuring the fairness and integrity of this Minnesota election is exceptionally high. This division supports the need for the Court to exercise original jurisdiction over this petition.

II. The legislature has granted standing under Minnesota Statute § 204B.44 to "any individual" which is inclusive of the Petitioners.

7. The Petitioners have standing.

8. Minnesota Statute § 204B.44 provides that "[a]ny individual may file a petition in the manner provided in this section for the correction of any of the following errors, omissions, or wrongful acts which have occurred or are about to occur." This statutory provision constitutes a legislative grant of standing, making the individual petitioners proper parties to this lawsuit.

[7]Clark v. Pawlenty, 755 N.W.2d 293, 299 (Minn.2008).
[8]Minn. Majority, No. A09-0950, Order at 1, 5.

FACTUAL BACKGROUND

I. The State Canvassing Board will meet on Tuesday, November 24, 2020, the third Tuesday following the general election held November 3, 2020 with the intention of certifying Minnesota's election results.

A. The 5 members of the state canvassing board will compile a report using the reported results of the 87 county canvassing boards and certify the correctness of the statewide results.

9. The state canvassing board meets in public to create the statewide report.

10. The statewide canvassing board has a duty to ensure the veracity before it certifies the correctness of the report. D

II. County Auditors must perform a "postelection review" (PER) of the state general election.

A. The county canvassing boards must meet between the third and tenth days following the general election and select the required number of precincts to be reviewed, by lot

11. Minnesota Statute § 204C.33 requires each county canvassing board to set the date time and location of the PER at its canvass of the state primary.

12. Minnesota Statute § 206.89 Subd. 2 requires the county canvassing board to select, by lot, the required number of precincts to be reviewed at its canvass following the general election.

13. Selecting the precincts by lot gives the appearance of randomness so as to add credibility to the process.

B. The county auditor must notify the Secretary of State of the precincts that have been chosen for review and the time and place the postelection review for that county will be conducted, as soon as the decisions are made.

14. As soon as the canvassing board determines the location, date and time of the PER and the selected precincts, the Secretary of State must be notified. This notice allows

voters the opportunity to participate in the PER process by properly observing the county boards review of the election results to ensure the law was followed.

III. The Secretary of State must post the date, time and location of the PER in each county, as well as the precincts to be reviewed, on the office website as soon as received.

A. The PER must be conducted in public and is governed by Minnesota's Open Meeting Law (OML).

15. The PERs are governed by the OML in MN Stat. 13D.01 requires all meetings, including executive sessions, must be open to the public when the meetings are required by law to transact public business.

16. The public's right to be informed about the events occurring in the meeting will be weighed against the governments interest in closing the meeting to the public.[9]

17. The law will be liberally construed to protect the public's right to full access to the decision-making process of public bodies governed by statute.[10]

18. The purpose of the OML is to assure public's right to information, and give public opportunity to express its views.[11]

B. The requirement a process be public is meant to ensure the public has total visual and auditory access to the information being reviewed

19. The public have the right to tape record proceedings of meetings where such transcription will not have a significantly adverse effect on the order of the proceedings or impinge on constitutionally protected rights and neither the public body nor any

[9]Berglund v. City of Maplewood, MN, D.Minn.2001, 173 F.Supp.2d 935, affirmed 50 Fed.Appx. 805, 2002 WL 31609767, certiorari denied 123 S.Ct. 2655, 539 U.S. 965, 156 L.Ed.2d 667.

[10]St. Cloud Newspapers, Inc. v. District 742 Community Schools, 1983, 332 N.W.2d 1.

[11]Mankato Free Press Co. v. City of North Mankato, App.1997, 563 N.W.2d 291.

member thereof may prohibit dissemination or broadcast of the tapes.[12]

20. The attendees at the PER must be able to view the process in a manner that allows them to see and hear the information being verified. If they are not given adequate access, there is no point to the process.

IV. The PER must include the votes cast for President or Governor; United States Senator; and United States Representative.

21. The PER may include review of votes cast for down ticket candidates.

V. The PER must be conducted by postelection review official who may be assisted by election judges designated by the postelection review official for this purpose.

A. Election judge qualifications are statutory.

22. Election judges used in the PER must be properly trained.

23. MN Stat. § 204B.25 requires election judges be trained in accordance with the rules established by the Secretary of State.

24. To serve as an election judge, a person must successfully complete a basic training course that meets the requirements of MN Stat. § 8240.1600.

VI. The PER must comply with the party balance requirement of MN Stat. § 204B.19.

25. No more than half of the election judges in a precinct may be members of the same major political party unless the election board consists of an odd number of election judges, in which case the number of election judges who are members of the same major political party may be one more than half the number of election judges in that precinct.

[12]Op.Atty.Gen. 63a-5, Dec. 4, 1972.

VII. The PER must consist of a manual count of the ballots used in the precincts selected and must be performed in the manner provided by MN Stat. § 204C.21.

26. The PER requires the public be allowed to observe the counting of the ballots to confirm the process as required by statute is being followed.

VIII. The PER must be conducted in the manner provided for recounts under MN Stat. § 204C.361 to the extent practicable.

27. The Secretary of State must adopt rules according to the Administrative Procedure Act establishing uniform recount procedures.

28. MN Stat. § 8235.0800 establishes that ballots must be segregated by precinct and returned to sealed containers according to precinct when not being counted to maintain the segregation of ballots by precinct.

IX. The Secretary of State shall adopt rules according to the Administrative Procedure Act establishing uniform recount procedures.M

A. Each county is required to follow the rules for recounts established by the Secretary of State when completing the PER.

29. The purposes of the Administrative Procedure Act include increasing public accountability of administrative agencies, ensuring a uniform minimum procedure and increasing public access to government information.

30. The intention of the Administrative Procedure Act is to create a more efficient, economical and effective government administration.

31. The Administrative Procedure Act provides a means for oversight of powers and duties delegated to administrative agencies.

B. The rules must be uniform, as applied to voters across the state to avoid violating the equal protection or uniformity clause of the Minnesota Constitution.

32. State action is necessary to trigger equal protection analysis.[13]

33. Regardless of whether the right to vote is explicitly stated or its existence is implied, the right to vote is considered fundamental under both the U.S. Constitution and the Minnesota Constitution.[14]

34. The unequal application of a statute to those entitled to equal treatment is not a denial of equal protection unless intentional or purposeful discrimination is shown.[15]

35. The waiving of election law and rules to allow for votes to be cast, without any safeguards to prevent a third party from casting an illegal vote, is intentionally overbroad and is meant to encourage conduct that violates the law and could influence an election.

X. The Office of the Secretary of State is responsible for maintaining a statewide voter registration system.

A. County officials must uniformly adhere to state law as they engage in a process to update the voter database with regards to change of addresses, deceased voters, verification of eligibility and same- day registration.

36. The witness requirement on absentee ballots has long been a check on absentee ballots to ensure the voter is both a living voter who resides at the address used on the registration and is in fact the person who cast the ballot.

37. The November 2020 election saw an unprecedented number of Absentee and Mail in votes: just over 675,000 ballots accepted in 2016 and nearly 1.9 million in 2020.

[13]Claude v. Collins, App.1993, 507 N.W.2d 452, review granted, reversed 518 N.W.2d 836.

[14]Kahn v Griffen, 701 N.W.2d 815.

[15]Matter of Griepentrog, App.2016, 888 N.W.2d 478.

38. The regular and accurate purging of ineligible, deceased and fraudulent voters, by county and state officials, is necessary to protect election integrity.

XI. Not all persons have the right to vote under Minnesota's Constitution and, therefore, the right may not be presumed.

A. Consistent with Article I, Section 2, the restriction on the right to vote is a result of state actions.

39. Persons under guardianship, felons and people determined to be legally incompetent may not be eligible to vote.

40. Minnesota laws prevent virtually all challenges to a voter registration.

41. The Secretary of State must have thorough security measure in place to identify fraudulent addresses, deceased voters, fraudulent names, voters registered at duplicate addresses in in multiple states, voters using maiden and married names for example.

42. Knowingly submitting a false voter registration, attempting to register to a false voter, or aiding and abetting in those efforts is a felony.

43. The executive branch has the authority to prosecute of voter fraud.

44. The Federal Constitution confers the authority to make rules regarding federal elections on the state legislature, not the judicial or the executive branch.[16]

45. Over the past several election cycles, state officials have increasingly encouraged voters to cast ballots Absentee or by Mail and there is has been an increasing number of these voters in every election cycle.O

[16]Republican Party of Pennsylvania v. Boockvar, 20-542, 2020 WL 6304626 (U.S. Oct. 28, 2020).

46. In late Winter/ early Spring 2020, the COVID-19 virus led to the MN Secretary of State pushing for mandatory Mail-In voting. The Legislature rejected his proposal.

47. Democrat activists sued the Secretary of State seeking the waiving of the witness requirement on all Absentee and Mail ballots due to COVID-19. The plaintiffs argued it was too dangerous to have a witness sign the ballot form.

48. The Secretary of State entered into two stipulated settlement agreements to waive the witness requirement- one dated June 17, 2020 waived the witness requirement for the August 2020 primary and the second dated August 3, 2020 waived the witness requirement for the November 3, 2020 general election.

49. The Secretary of State claims there are 4,118,462 Minnesotans eligible to vote and 3,589,653 were registered to vote at 7am on election day.

50. 87% of eligible Minnesotans were registered to vote before 11/3/2020.

51. Approximately 90% of MN registered voters cast ballots in the general election in 2020.

52. Absentee and Mail-In voters cast 9% of ballots in 2012 and 23% of ballots in 2016. They were witnessed.

53. Absentee and Mail-In ballots accounted for nearly 60% of the 2020 ballots in MN. The witness requirement was removed so these ballots were not witnessed.

XII. The Office of the Minnesota Secretary of State announced the campaign "Investing in Democracy" (IID) to enhance security Minnesota's election cybersecurity and to modernize and secure the Statewide Voter Registration System (SVRS).

54. There are examples of Absentee Ballots being mailed to addresses across Minnesota despite the fact the voter does not live at that residence.

55. There are state and national concerns about the use of technology, including internet and intranet communications, undermining the security of elections.

56. There is evidence the electronic communications were compromised on more than one occasion during the counting of ballots cast in the general election.

57. There is the possibility the high-speed scanners and related software could have been accessed directly to alter voting totals in Minnesota.

XIII. The PER Process across the state was fraught with inconsistency, missing information and efforts to exclude the public from engaging on meaningful observation.

58. The State's PER process was totally inconsistent from one county to the next.

59. The counties had completely different procedures.

60. Some counties used elections judges as required, some did not. It was not clear who the judges were, if they were election judges or simply staff brought in to participate in the process.

61. Numerous affidavits from voters indicate that there was little to no transparency.

A. Ramsey County, without notice, changed its PER date from November

14, 2020, to November 16, 2020. A group of people showed up at the location listed on the Secretary of State website to observe the PER and nobody was there.

B. Hennepin County closed its doors the night before the PER and

performed it via YouTube with only one camera. The camera displayed only one precinct without any sound. The images were not clear

enough to This is just a few of the irregularities and lack of transparency in the PER process for the November 3, 2020 election.[17]

62. Dakota County's post-election review hand-written results from the PER do not match the reported results to the Secretary of State.[18] Dakota County also FAILED to separate the Absenteeand Mail-In ballots from the polling place votes.[19] Dakota County failed to follow the rules prescribed by the Secretary of State as follows:

A. Mr. Lokken, Dakota County Elections Director, failed to follow the process and procedures of the Minnesota Secretary of State's post-election review guide as follows:[20]

Page(s)	Section	Description
9-10	7.1.2	Failed to hand-write the blank for office, over/defective for office and totals on the worksheet.
10	7.2	Failed to allow the party balance requirement of Minn. Stat. 204B.19.
11	7.3	Failed to allow public view of the ballots by requiring 6 foot distance from table.

[17]See Affidavits of Jane L. Volz, Nora L. Feltman (who witnessed ballots being delivered to the Dakota County PER in a large white purse, brown cardboard boxes, and manilla envelopes, all unsealed); Paul V. Staut, Kathleen Hagen, Kathleen Nydegger, Amy Bruno, Don Bumgarner, and Deborah Coxe.

[18]See Affidavit of Jane L. Volz, Exhibits B & C.

[19]See Volz Affidavit.

[20]Id.

Page(s)	Section	Description
11	7.4	Never really explained the process and the roles of review officials and staff.
11	8	Failed to count absentee/mail ballots separately from polling place ballots–"Polling place ballots and Absentee/ Mail Ballots will be counted separately."
16	11.1	Failed to fully explain the differences in the counts.
17	11.2.1	Failed to "input two sets of results into ERS" for polling place results and absentee/mail in ballot votes.
20	11.2.2	Failed to proof the results and actually changed them from the worksheets fill out by the counters for the blank for office and over/under votes and did not explain the differences.
24	Appendix	Failed to have three election judges to each team and to have election judges sign the post-election review worksheets
MS § 204B.40		Failed to retain post-election review worksheets in violation of rule that all "election materials" be preserved for at least 22 months.

XIV. The IID program hired a Cyber Navigator, an expert dedicated to assist counties and local governments with election related cybersecurity.

A. Counties across Minnesota used equipment provided by Dominion, or other electronic systems providers, that connect to the internet, a secure intranet system, or both.

63. Dominion Voting Systems is currently being investigated because of allegations of election tampering across the United States and in other countries.

XV. The authority to alter Minnesota election law related to federal candidates is vested in the state legislature.

A. The Secretary of State does not have the authority to use the judicial system to usurp legislative will.

64. As noted, the United States Constitution confers the authority to make rules regarding federal elections on the state legislature, not the judicial or the executive

branch.[21]

B. The Governor had the authority to call a special session to seek legislative changes to election law related to the pandemic.

65. The MN Governor called 4 special sessions to address the pandemic in June 2020, July 2020, August 2020 and September 2020.

66. The legislature did not waive the witness requirement for Absentee or Mail-In ballots.

C. The United States Supreme Court has indicated support for the position that there is no pandemic exception to the Constitution.

67. In a concurrence to deny an application to vacate a stay in Democratic Nat'l Comm. v. Wisconsin State Legislature, 20A66, 2020 WL 6275871 (U.S. Oct. 26, 2020), Chief Justice Roberts indicated that state lawmakers have the authority to alter election law, not judges.

68. Justices Gorsuch and Kavanaugh concurred, in the same decision,

"The Constitution provides that state legislatures—not federal judges, not state judges, not state governors, not other state officials—bear primary responsibility for setting election rules. Art. I, § 4, cl. 1. And the Constitution provides a second layer of protection too. If state rules need revision, Congress is free to alter them. Ibid. ("The Times, Places and Manner of holding Elections for Senators and Representatives, shall be prescribed in each State by the Legislature thereof; but the Congress may at any time by Law make or alter such Regulations … "). Nothing in our founding document contemplates the kind of judicial intervention that took place here, nor is there precedent for it in 230 years of this Court's decisions."

[21] Republican Party of Pennsylvania v. Boockvar, 20-542, 2020 WL 6304626 (U.S. Oct. 28, 2020).

69. In an opinion issued October 29, 2020 a 3- judge panel of the United States Court of Appeals in the Eighth Circuit concluded MN Secretary of State Simon's effort to alter election law related to extending the deadline for receipt of Absentee and Mail-In was outside his authority. The Court stated:

"Thus, the Secretary's attempt to re-write the laws governing the deadlines for mail-in ballots in the 2020 Minnesota Presidential election is invalid. However well-intentioned and appropriate from a policy perspective in the context of a pandemic during a Presidential election, it is not the province of a state executive official to re- write the state's election code, at least as it pertains to selection of Presidential electors….

The rule of law, as established by the United States Constitution and the Minnesota Legislature, dictates these rules must be followed notwithstanding the Secretary's instructions to the contrary. There is no pandemic exception to the Constitution. See Democratic Nat'l Comm. v. Wis. State Legislature, No. 20A66, ––– U.S. – –––, ––– S.Ct. ––––, ––––, ––– L.Ed.2d ––––, 2020 WL 6275871, at *4 (Oct. 26, 2020)"[22]

LEGAL ARGUMENT

CLAIM I

First Amendment and Equal Protection U.S. Const. amend. XIV, 42 U.S.C. § 1983, Minn. Const. Article I

70. Petitioners incorporate by reference and re-allege all prior paragraphs of this Petition and the paragraphs in the counts below as though set forth fully herein.

[22]Carson v. Simon, 978 F.3d 1051 (8th Cir. 2020).

71. The right of a qualified citizen to vote in a state election involving federal candidates is recognized as a fundamental right under the Fourteenth Amendment of the United States Constitution, which prohibits a state from "deny[ing] to any person within its jurisdiction the equal protection under the laws."[23]

72. The equal enforcement of election laws is necessary to preserve our most basic and fundamental rights.

73. The requirement of equal protection is particularly stringently enforced as to laws that affect the exercise of fundamental rights, including the right to vote.

74. The Equal Protection Clause requires states to '"avoid arbitrary and disparate treatment of the members of its electorate."'[24]

75. Each citizen "has a constitutionally protected right to participate in elections on an equal basis with other citizens in the jurisdiction."[25]

76. "Having once granted the right to vote on equal terms, the State may not, by later arbitrary and disparate treatment, value one person's vote over that of another."[26] Among other things, this requires "specific rules designed to ensure uniform treatment" in order to prevent "arbitrary and disparate treatment to voters."[27]

77. "The right to vote extends to all phases of the voting process, form being permitted to place one's vote in the ballot box to having that vote actually counted. Thus,

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[23]U.S. Const. Amend. XIV, § 1.
[24]Charfauros v. Bd. of Elections, 249 F.3d 941, 951 (9th Cir. 2001 (quoting Bush, 531 U.S. at 105).
[25]Dunn v. Bloomstein, 405 U.S. 330, 336 (1972).
[26]Bush, 531 U.S. at 104-05.
[27]Id. at 106-07.

the right to vote applies equally to the initial allocation of the franchise as well as the manner of its exercise. Once the right to vote is granted, a state may not draw distinctions between voters that are inconsistent with the guarantees of the Fourteenth Amendment's equal protection clause."[28]

78. "[T]reating voters differently" thus "violate[s] the Equal Protection Clause" when the disparate treatment is the result of arbitrary, ad hoc processes.[29] Indeed, a "minimum requirement for non-arbitrary treatment of voters [is] necessary to secure the fundamental right [to vote]."[30]

79. Respondent, Steve Simon, is not part of the Minnesota Legislature and cannot exercise legislative power to enact rules or regulations regarding the handling of absentee/mail in ballots that are contrary to Minnesota Statutes.

80. By entering into two stipulated settlement agreements with Democrat advocacy groups to alter the process for handling and accepting absentee and mail in ballots, Steve Simon unilaterally, and without authority, altered Minnesota Election Law.

81. As a result of the Secretary of State's usurpation of legislative power, the longstanding witness requirements, well-known to Minnesota voters, were removed. Absentee and Mail-In ballots were processed differently by the county ballot boards, overseen by county officials, with regard to acceptance or rejection because there was no witness requirement to verify the person who cast the ballot was in fact the registered

[28] Pierce v. Allegheny County Bd. of Elections, 324 F.Supp.2d 684, 695 (W.D. Pa. 2003) (citations and quotations omitted).
[29] Charfauros, 249 F.3d at 954.
[30] Bush, 531 U.S. at 105.

voter. The election process has been altered in a manner that removes the most important check on voter security. Further, the Absentee and Mail-In ballots were not segregated from the ballots cast at the precinct. The envelopes for the Absentee and Mail-In Ballots were not counted, or even shown to exist, at the vast majority of the PERs. The Minnesota Legislature created the PER process, which is clearly laid out in Minnesota Election Law. Unfortunately, the PER has no teeth because the MN Secretary of State Simon has removed them.

82. Further, MN Stat. § 206.89 Subd 3 requires the county auditor, or if so delegated the municipal clerk, to conduct the PER. This subdivision also allows the PER review official to designate election judges to assist in this process. As election judges, they should all have been properly trained to be election judges. These election judges must meet the party balance requirement mandated in MN Statute § 204B.19. The PERs observed did not allow for the observers to receive complete information about the qualifications or party status of the election judges who assisted in the PER process. The PER process is required to be open so as to allow Minnesota voters the opportunity to confirm the election was administered in a fair, non-partisan manner. By manipulating the law and not allowing public information to flow to the people, a single political party, the Democrat Party, has undermined the integrity of Minnesota's elections. Minnesota Law has been ignored across the state.

83. The rules and regulations created by the two settlement agreements between Steve Simon and the Democrats created an overly broad, arbitrary, disparate, and ad hoc process meant to ensure every ballot was counted, whether legal or not. Whether

Absentee and Mail-In voters were sent ballots automatically or after requesting them, any person could fill them out and mail them back. The witness requirement served to protect the actual voter from having their individual vote stolen and the legal voters from having the vote diluted by illegal voters. The witness is as close to an election judge as is possible in the community. The removal of the witness requirement opened Minnesota's door to the unchecked opportunity for illegal votes to be counted in all of our local, state and federal elections. The November 3, 2020 elections have been tainted by the intentional actions of Democrats and complicit government officials. They are responsible for the consequences.

84. Voters who cast their ballots in person are subject to a higher level of scrutiny than Absentee or Mail-In voters. Additionally, the burden of going to vote in person was made more difficult by the state's choosing to combine precincts, thereby increasing wait times. This disparate treatment created by removing all safeguards and requirements for the cooperative voters who voted from home is not justified by, and is not necessary to promote, any substantial or compelling state interest.

85. Secretary of State Simon created an overly broad agreement to remove a requirement for all voters when he could have created a specific remedy for the very small number of people who legitimately struggle to safely find a witness.

86. The foregoing injuries, burdens, and infringements that were caused by Steve Simon's intention and unnecessary conduct violated the Equal Protection Clause of the Fourteenth Amendment and Article I of the Minnesota Constitution.

87. The foregoing violations occurred as a consequence of Steve Simon acting under color of state law. Accordingly, Petitioners are entitled to declaratory and injunctive relief against Respondents under the Minnesota Declaratory Judgment Act, Minn. Stat. Chapter 555 pursuant to 42 U.S.C. § 1983 and Article 1 of the Minnesota Constitution.

88. As a result of Steve Simon's unauthorized actions and disparate treatment of absentee ballots, this Court should enter an order, declaration, and/or injunction to prohibit the Respondents from certifying the results of the 2020 general election in Minnesota and to order a statewide recount that must be conducted using Minnesota election law. This recount should require a complete review of ALL election materials and be completed with representatives from all major parties present in a meaningful way as intended by the legislature.

89. Alternatively, this Court should enter an order, declaration, and/or injunction prohibiting Respondents from certifying the results of the 2020 general election if those results include the tabulation of defective absentee ballots, regardless of whether said ballots were cured.

90. Alternatively, this Court should enter an order, declaration, and/or injunction that the results of the 2020 general election in Minnesota are defective as a result of the above-described constitutional violations, and that Respondents are required to cure said deficiencies in a matter consistent with federal and Minnesota law, and without the taint of the procedures described by the settlement agreements and the violations of the PER process statewide.

91. Alternatively, this Court should enter an order for a new statewide election, on a specific day, using the traditional precincts available to voters to be scheduled at the soonest possible date.

92. Petitioners have no adequate remedy at law and will suffer serious and irreparable harm unless the relief herein is granted.

COUNT II

Violation of the Separation of Powers

Minn. Const. Article III

93. Petitioners incorporate by reference and re-allege all prior paragraphs of this Petition and the paragraphs in the counts below as though set forth fully herein.

94. At the heart of the integrity of election law is the goal of preserving the ability of voters to participate in genuine elections, thereby fostering public confidence throughout the election process. From voter registration, to the casting of votes, to the counting of ballots, through the PER our election system must be free of partisanship. When citizens go to the polls to cast their vote, they aspire not only to elect their leaders, but to choose a direction for their state.

95. However, the integrity of an election can be jeopardized and public confidence can be undermined when election officials exercise or exceed powers they do not possess.

96. The separation of powers doctrine is familiar to this Court, but bears repeating because of the significance of the doctrine's role in this electoral process which provides

"Under the Separation of Powers Clause, no branch can usurp or diminish the role of another branch.[31]

97. The three branches of state government are both co-dependent and independent of each other. While they must find ways to cooperate, no one branch can unilaterally control, coerce, or restrain the action, or non-action of any of the others in the exercise of any official power or duty conferred by the Constitution, or by valid law, involving the exercise of discretion.

98. The Minnesota Constitution states "the powers of government shall be divided into three distinct departments: legislative, executive and judicial. No person or persons belonging to or constituting one of these departments shall exercise any of the powers properly belonging to either of the others except in instances expressly provided in this constitution."[32]

99. Article III bars any department from assuming or asserting any "inherent powers" – powers not "expressly" given—that properly belong to either of the other departments.[33] No "department can control, coerce, or restrain the action or inaction of either of the others in the exercise of any official power or duty conferred by the Constitution.[34]

100. The Minnesota Supreme Court has been steadfast in upholding the separation

[31] See Minn. Const. art. III, § 1; Brayton v. Pawlenty, 768 N.W.2d 357, 365 (Minn. 2010).
[32] Minn. Const. Art. III.
[33] Brayton, 768 N.W.2d at 365.
[34] Id.

of powers.[35]

101. The Secretary of State has NO authority to disregard the intent of the Legislature and alter or amend Minnesota Election Law as that authority is vested with the state legislature. The Secretary may only adopt alternative election procedures if "a provision of the Minnesota Election Law cannot be implemented as a result of an order of a state or federal court[.]"[36] Examples include the sudden need to keep polls open because of severe weather or an equipment failure.

102. In the Spring of 2020, the Legislature was fully aware of the COVID- 19 challenges and chose to NOT alter the witness requirement for Absentee and Mail-In ballots.

103. The Governor had the authority to call a special session to seek an alteration to Minnesota Election Law. In fact, there were four special sessions between June and September 2020 during which time the legislature could have passed legislation to remove the requirement. The Legislature chose NOT to remove the requirement.

104. Multiple Federal Courts of Appeals have now ruled there is no pandemic exception to the Constitution and have made it clear the state legislators are vested with the authority to create election law, including the Eighth Circuit.[37]

105. The Secretary of State and various election officials across Minnesota including county canvassers have violated the separation of powers doctrine by obliterating election law through sham court processes and blatant refusal to administer

[35]See, e.g., Sharood v. Hatfield, 296 Minn. 416, 210 N.W.2d 275, 279 (1973).
[36]Minn. Stat. § 204B.47.
[37]Carson v. Simon, 978 F.3d 1051 (8th Cir. 2020).

and follow long-standing election law. This case is ripe for adjudication under Minn. Stat. § 204B.44.

106. The Secretary of State and county election officials, including election judges, have and will continue to usurp the Minnesota legislature's authority by failing to follow Minnesota Election Law if they are not ordered to cease.

107. This Court should enter an order, declaration, and/or injunction finding the results of the 2020 general election in Minnesota are defective as a result of the Secretary of State's intentional usurpation of the Minnesota legislature's authority, the Respondents violated the separation of powers doctrine, and that Respondents are required to cure said deficiencies in a matter consistent with federal and Minnesota law. The cure must be free of the taint of the overly broad stipulated settlement agreements and overcome the numerous violations of the PER process.

108. Alternatively, this Court should enter an order, declaration, and/or injunction that the results of the 2020 general election in Minnesota are defective as a result of the above-described constitutional violations, and that Respondents are required to cure said deficiencies in a matter consistent with federal and Minnesota law, and without the taint of the procedures described by the settlement agreements and the violations of PER.

COUNT III

Due Process U.S. Const. amend. XIV, 42 U.S.C. § 1983

Minn. Const. Article I

109. Petitioners incorporate by reference and re-allege all prior paragraphs of this Petition and the paragraphs in the counts below as though set forth fully herein.

110. Voting is a fundamental right protected by the Fourteenth Amendment to the U.S. Constitution.

111. The Fourteenth Amendment protects the right to vote from conduct by state officials which seriously undermines the fundamental fairness of the electoral process.[38] "Having once granted the right to vote on equal terms, the State may not, by later arbitrary and disparate treatment, value one person's vote over that of another."[39] Among other things, this requires "specific rules designed to ensure uniform treatment" in order to prevent "arbitrary and disparate treatment to voters."[40]

112. "[T]reating voters differently" thus "violate[s] the Equal Protection Clause" when the disparate treatment is the result of arbitrary, ad hoc processes.[41] Indeed, a "minimum requirement for non-arbitrary treatment of voters [is] necessary to secure the fundamental right [to vote]."[42]

113. In statewide and federal elections conducted in the State of Minnesota, including without limitation, the November 3, 2020 general election, all candidates, political parties, and voters, including without limitation, Petitioners, have a vested interest in being present and having meaningful access to observe and monitor the electoral process to ensure that it is properly administered in every county and precinct and that it is otherwise free, fair and transparent.

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[38] See Marks v. Stinson, 19 F.3d 873, 889 (3d Cir. 1994); Griffin v. Burns, 570 F.2d 1065, 1077-78 (1st Cir. 1978).

[39] Bush, 531 U.S. at 104-05.

[40] Id. at 106-07.

[41] Charfauros, 249 F.3d at 954.

[42] Bush, 531 U.S. at 105.

114. Respondents have a duty to guard against deprivation of the right to vote and to ensure that all candidates, political parties, and voters, have meaningful access to observe and monitor the electoral process, including without limitation, the November 3, 2020 general election and the PER in order to ensure that the electoral process is properly administered in every county and precinct and is otherwise free, fair and transparent.

115. Rather than heeding these mandates and duties, Secretary of State Simon arbitrarily and capriciously denied, or allowed County Officials to deny, the public, including candidates, to meaningfully observe and monitor the electoral process, as is further set forth in the affidavits.

116. The Secretary of State is vested with the responsibility to ensure federal and state laws are implemented uniformly, across Minnesota. It is his duty to ensure the laws are followed and to develop rules, regulations, policies and general guidance as needed to support the people and entities who are charges with managing the election process. Secretary of State Simon intentionally and/or arbitrarily and capriciously denied Petitioners access to and/or obstructed actual observation and monitoring of the PERs through a failure to properly train the county canvassers, a failure to monitor the processes and a failure to ensure that uniform standards of reviewing election materials were clear to all parties involved in the process.

117. At multiple PERs across the state, the ballots were presented in containers that were not secure, were personal containers and were not uniform, raising serious concerns about chain of custody. Election materials were not included in many of the PERs, including outer envelopes, spoiled ballots and information sheets. The Absentee

and Mail-In ballots seemed to be combined with the other ballots. Many observers reported seeing large stacks of ballots only being placed in one pile however they could not hear the judges or see the ballots well enough to know which candidate was the recipient of the votes. The PER process is intended to allow the public to engage in the election system in a meaningful way to build trust in and knowledge about the election system. The 2020 election has undermined the trust of the election system.

118. The Secretary of State, has acted, and will continue to act in conjunction with many of the county canvassing boards, in nefarious ways if the Minnesota State Canvassing Board certifies the election on November 24, 2020. The Secretary of State acted under the color of state law to violate the right to vote and the due process rights of voters and candidates as secured by the Fourteenth Amendment to the United States Constitution.

119. As a result of these improper actions described herein, this Court should enter an order, declaration, and or injunction requiring as follows

A. That the PER of the November 3, 2020 elections, be repeated in every county, consistent with this Court's declaration including the review of all election materials and all data that can be pulled from the voting equipment;

B. That the PER include down ballot races for state candidates;

C. That the public and the monitors designated by the Republican Party

and other major parties have the right to be present to meaningfully observe all aspects of the PER, including but not limited to, the transfer and receipt of the ballots, the tapes from the voting machines, the entry of tabulation of the resulting vote counts, the

absentee envelopes and absentee certifications; the information gathered by the ballot boards during the 45 days leading up to November 3, 2020.

D. That Petitioners and the Republican Party be given at least 24 hours written notice prior to any election activity;

E. That all ballots cast in Minnesota be read by two persons agreed to by Petitioners or an identified proxy, and the other major parties, with said readings being overseen by Republican Party-designated monitors any others so designated by the Court; and that every table used for PER be video-streamed with audio or be available for viewing online.

F. That the Plaintiffs and the Republican Party be provided with the opportunity to confirm, in person, the existence of all ballot envelopes; to observe a complete count of the outer envelopes and to verify postmarks on those envelopes; to compare voter signatures on outer envelopes, voter registration documents, and requests for absentee ballots or other voting records as necessary; to observe all items mentioned previously and any other election materials in the possession of the Secretary of State and/or any Minnesota County, City, Township or their agents.

120. Petitioners have no adequate remedy at law and will suffer serious and irreparable harm unless the injunctive relief requested herein is granted.

RELIEF REQUESTED

Petitioners seek an immediate temporary restraining order (TRO) enjoining the 2020 State Canvassing Board from certifying the November 3, 2020 election.

This petition seeks relief under Minnesota Statute § 204.B.44, subd. (a)(4) against the Secretary of State and the Minnesota State Canvassing Board, who are charged with canvassing and certifying the results of all statewide elections, including state and federal offices, state constitutional amendment ballot questions, and state legislative and judicial offices that overlap more than one county, and who will likely certify county canvassing reports that certified election results that have not yet been subject to a Postelection Review that fully complies with Minnesota Election law, are fraudulent and include ballots that cannot be verified.

Petitioners seek an injunction against the Secretary of State and the Minnesota State Canvassing Board requiring them to:

- Ensure every county has completed a PER in full compliance with MN Stat. §206.89;
- Ensure every county complied with MN Stat. 13D.01 so the public has full access to the PER process;
  - The public and monitors designated by the Republican Party and other major parties have the right to be present to meaningfully observe all aspects of the PER, including but not limited to, the transfer and receipt of the ballots, the tapes from the voting machines, the entry of tabulation of the resulting vote counts, the absentee envelopes and absentee certifications; the information gathered by the ballot boards during the 45 days leading up to November 3, 2020;
  - The Petitioners, the Republican Party and the other major parties receive at least 24 hours notice prior to any election activity;
- Ensure every county has retained possession of ALL required election materials, including the outer envelopes, as required under Minnesota election law;

And Order

- The 87 County Canvassing Boards to complete a full canvass of all of the elections, including the down ballot races for state candidates, in their jurisdiction
- The PER to include all election materials in the canvass, including data from all machines used to count ballots
- The review of all ballots cast in Minnesota be read by two persons agreed to by Petitioners, or an identified proxy, and the other major parties, with said readings being

overseen by Republican Party-designated monitors any others so designated by the Court; and
- Every table used for PER be video-streamed with audio or be available for viewing online; and
- The Plaintiffs and the Republican Party be provided with the opportunity to confirm, in person, the existence of all ballot envelopes; to observe a complete count of the outer envelopes and to verify postmarks on those envelopes; to compare voter signatures on outer envelopes, voter registration documents, and requests for absentee ballots or other voting records as necessary; to observe all items mentioned previously and any other election materials in the possession of the Secretary of State and/or any Minnesota County, City, Township or their agents.

CONCLUSION

This Court must take action to prevent the certification of the Minnesota election of November 3, 2020 until a complete, bi-partisan, statewide audit of the election occurs. This audit must be comprehensive and include a review of all election materials and our election system. Illegal voters cannot themselves be disenfranchised but they can and do disenfranchise legal voters. Legal Minnesota voters will be disenfranchised if the illegal votes are allowed to remain in the count. The voters' trust in our electoral system will be irreparably harmed if the actions of those who sought to undermine our election system are ignored.

Election laws will eventually need to be strengthened but we are at a tipping point in which Minnesota voters, regardless of party affiliation, have the right to expect that the country that founded fair and secure elections can still have them today.

Ignoring for one more election cycle the actions of those in the Executive branch who would violate the separation of powers would send a dangerous signal to our electorate and to the people. If our highest court condones such blatant and egregious violations of law and abuses of power, the faith in our judicial system will crumble.

Many Minnesota citizens attempted to participate in the PER audit process to demonstrate that the right to vote and our elections still matter. These people each hoped to observe a lawful process that sought the truth of what happened during our nearly 7-week election process. Even though they and many others experienced the dark side of our election system on and since November 3, 2020, our Founding Fathers would be proud to know that this Court did its part to restore integrity in our election system and to protect our individual right to vote and our collective belief in the principle of one person, one vote.

Dated: November 23, 2020

/s/ Susan Shogren Smith
Susan Shogren Smith
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Attorney for Petitioners

I declare under penalty of perjury that everything I have stated in this document is true and correct.

*11/23/2020*_ Hennepin County, MN **/s/Susan Shogren Smith**_ Date Location Name

Acknowledgment Required by Minn. Stat. § 549.211, Subd. 2

The undersigned hereby acknowledges that, pursuant to Minn. Stat. § 549.211, costs, disbursements, and reasonable attorney and witness fees may be awarded to the opposing party or parties in this litigation if the Court should find the undersigned acted in bad faith, asserted a claim or defense that is frivolous and that is costly to the other party, asserted an unfounded position solely to delay the ordinary course of the proceedings or to harass, or committed a fraud upon the Court.

Dated: November 23, 2020

/s/ Susan Shogren Smith
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